APPROVED ON NOVEMBER 4, 2026
BY THE BOARD OF COUNTY COMMISSIONERS
AT THE WEEKLY BUSINESS SESSION

Legal Counsel Update: October 29, 2026
10:00 a.m. - Board of Commissioners Conference Room

Attending: Commissioners Ron A. Smith; Colene M. Martin; Gary L. Richardson; Wally Hicks, Legal Counsel; and Nikole Guzman, Recorder

Legal Counsel Update

1. **Declaration of Potential Conflicts of Interest**

   Commissioners Richardson, Martin, and Smith each declared no potential conflicts of interest regarding the matters before the Board.

2. **Order No. 2026-xxx; In the Matter of Approving the Josephine County Rural Fire Protection District Boundary in Final Approved Form for Submission to the Department of Revenue and the County Assessor Pursuant to ORS 308.225**

   Wally Hicks, Legal Counsel, provided an update regarding the proposed final boundary for the Josephine County Rural Fire Protection District. He reviewed the formation of the district by the Board of County Commissioners, the transfer of approximately $1.5 million in startup funding to the district, and the subsequent election of the district's governing board. He also reviewed the prior boundary dispute with the Applegate Rural Fire Protection District, the court judgment requiring the disputed Applegate coverage-area properties to be excluded, and the amended boundary previously accepted by the Oregon Department of Revenue.

   Legal Counsel advised that a later review identified additional property-boundary discrepancies that now require correction. Because the existing boundary was established by a prior Board Order and subsequently incorporated into a court judgment, the County must return through that process to amend the boundary. The Department of Revenue has advised that a property spreadsheet alone is insufficient and that a professionally surveyed boundary description is required. Legal Counsel is coordinating with the district regarding the survey cost and supporting documentation and anticipates returning to the Board in approximately one month with the completed map and related letters. No formal action was taken.

Chair Ron Smith called for Executive Session at 10:12 a.m. pursuant to ORS 192.660(2)(h), to consult with counsel concerning the legal rights and duties of the County regarding current litigation or litigation likely to be filed. Accredited news-media representatives were directed not to report or disclose the deliberations or statements made during Executive Session. Chair Smith stated that no final decision would be made in Executive Session and that the Board would return to Open Session before taking action.

Additional Attendees: Wally Hicks, Legal Counsel; Janet Fredrickson, Public Health Administrator; Teira Bartl, Jail Clinic Supervisor; Dr. David Candelaria, Josephine County Public Health Officer and Jail Clinic Medical Director; and Chrissy Ewald, Daily Courier.

3. **Executive Session**

   a. **Estate of Butterfield v. Wellpath LLC, et al.; U.S. District Court Case No. 6:21-cv-00671-CL and Provision of Healthcare at the Josephine County Jail - ORS 192.660(2)(h)**

   Executive Session adjourned at 10:47 a.m.

Legal Counsel Update Continued

The Board reconvened in Open Session at 10:47 a.m. Chair Smith stated that no decisions were made in Executive Session. Legal Counsel advised that staff would proceed as discussed, including follow-up regarding the custody-side protocol documentation requested by the Board. No formal action was taken.

4. Additional Subjects/Matters from Commissioners – ORS 192.640(1)

Commissioners reported no additional matters for Board consideration.

There being no further business, the Legal Counsel Update adjourned at 10:48 a.m.